

HOUSE BILL 307

By Gillespie

AN ACT to amend Tennessee Code Annotated, Title 5,
relative to constitutional officer duties.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 5-1-202(c), is amended by designating the existing language as subdivision (c)(1) and adding the following as a new subdivision (c)(2):

(2) The offices of sheriff, register, county clerk, assessor of property, and trustee are the constitutional officers of the county, and their duties are as follows:

(A) The duties of the sheriff include, but are not limited to, being the chief law enforcement officer of the county. The sheriff and the sheriff's deputies are conservators of the peace and have full law enforcement jurisdiction over the sheriff's county. It is the sheriff's duty to suppress all affrays, riots, unlawful assemblies, insurrections, and all other breaches of the peace; to detect criminal activities; to arrest offenders lawfully; to provide civil and criminal warrant services; to execute civil process of law; to seek out and execute criminal warrants; to fingerprint and make records of offenders; to provide courthouse and courtroom security; and to investigate all felonious activity throughout the sheriff's county. This includes, but is not limited to, calls for service, investigation, and apprehension of those responsible for organized crime, public corruption, security for county schools, and road patrol. The sheriff is responsible for the free flow of vehicular traffic along all roads within the sheriff's county and apprehension of all offenders. The sheriff is also responsible for maintaining the

county's jails, as well as those duties traditionally performed by the sheriff in accordance with common law;

(B) The duties of the register include, but are not limited to, the filing or recordation of documents that affect the legal status of real or personal property;

(C) The duties of the county clerk include, but are not limited to, the collection of business taxes, motor vehicle registration and licensing, the collection of wheel taxes, the issuance of marriage and other licenses, and the keeping of records of the county's notaries public;

(D) The duties of the trustee include, but are not limited to, the collection of property taxes, the collection and disbursement of county funds, the management of the county's cash flow, and the investment of idle county funds; and

(E) The duties of the assessor of property include, but are not limited to, determining and recording the value of all property within the county, whether real, personal, or mixed, except for the property of public utilities.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.